Speculating on the Future of Digital Humanities Research with Copyrighted Materials

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Digital humanists are frequently stymied in their research by restrictions upon the materials that they can access, collect, and reproduce. These restrictions may be valid and necessary, warding off the inappropriate, extractive, and unethical computational use of archival materials, Indigenous collections, or materials with governance or privacy considerations (Caswell, 2023; Berry, 2023). Beyond considerations of ethics and privacy, in the United States, copyright restrictions - or rather perceptions of copyright restrictions - have significantly limited Digital Humanities research across multiple plains, hampering digitization, access to born-digital texts, and the development and sharing of corpora. How can we collectively, ethically, and legally steward corpora of copyrighted cultural materials, rather than cede this work to commercial vendors?

The effects of perceived copyright restrictions are particularly keenly felt by scholars of 20th- and 21st-century and contemporary culture, who must often rely on small, unrepresentative datasets. The unavailability of datasets of contemporary culture is not only due to restrictions on access, but to limitations on efforts by libraries and scholars to digitize and make these materials available in the first place.

Workers in cultural heritage institutions have played a central role in provisioning access to digital texts, creating and maintaining the digital collections that form the basis of so much work in DH. Librarians are key actors in interpreting copyright issues and working to change the risk paradigm to broaden non-expressive access to digital text collections, thus enabling computational access to "collections as data." Simultaneously, perceptions of copyright concerns have led libraries with print collections to refrain from digitization of in-copyright materials (Smith, 2012). In light of these limitations, efforts to encourage cultural heritage institutions to provision computational access have framed copyrighted collections as representing insurmountable concerns and emphasized unrestricted materials, aligning with cultural heritage digitization priorities (Padilla et al., 2018).

However, recent legal guidance for digitization has encouraged a more nuanced approach to risk (University of California Berkeley, 2021) and sought to inculcate "legal literacies" for those engaging in text and data mining (Samberg and Hennesy, 2019; Samberg and Vollmer, 2021), while clarifying that TDM is typically non-expressive and thus legally permissible under fair use (Sag, 2017). The Association for Computers and the Humanities, representing the interests of computational scholars in the United States, has been active in advocating for legal protections of non-expressive use (Dombrowksi and Tilton, 2024; Jockers, Sag, and Schultz, 2012). Additionally, efforts such as the HathiTrust Research Center have formalized policies and infrastructure for secure computational access to copyrighted collections of text.

Data Speculations seeks to harness the progress made by these efforts. With funding from the Institute of Museum and Library Services, we (Alex Wermer-Colan and Sarah Potvin) worked with a team of legal experts (Peter Jaszi, Brandon Butler, and Rachael Samberg) to host a national forum on understanding the legal barriers to developing and sharing copyrighted collections of published texts. The Forum, held in Spring 2025, will bring together specialists in DH, collections, copyright and library data services. We see these convenings as foundational to the collective work of removing access barriers for sharing copyrighted collections, serving libraries' core mission to make information, including copyrighted data, available to researchers and teachers to advance teaching and scholarship.

This short paper reports on work-in-progress by the *Data Speculations* team to analyze needs, develop a proof-of-concept legal framework, and advance this collective work in a rapidly changing environment (Wermer-Colan and Potvin, forthcoming). Data Speculations employs a speculative approach, drawing on speculative design (Dunne and Raby, 2013) and speculative methodology for cultural heritage infrastructure (Ross, 2022; Ross, Sheail, Terras, Schofield, 2024). This speculative approach is more necessary than ever due to the rapidly changing environment for supporting research on restricted datasets. In Fall 2024, HathiTrust announced its plan to cease funding the HathiTrust Research Center, leaving its novel work, including its influential Non-Consumptive Use Policy, data capsules, and provisioning of access to the many texts in the HathiTrust corpus in limbo. Simultaneously, JSTOR announced that they will sunset their Constellate TDM platform in 2025. In a move with even more devastating implications, the Institute of Museum and Library Services, the main source of federal funding for museums and libraries in the United States, was significantly cut by the new presidential administration and its funding priorities overhauled. As part of this plundering of IMLS, funding for *Data Speculations* was terminated.

Data Speculations takes speculative fiction as its core use case, exploring the model offered by the SF Nexus, a digitization and data curation effort at Temple University Libraries of 20th-century mass market science fiction. Non-consumptive access to the growing corpus has been developed through both on-site and virtual mediums, including the creation of a website, sfnexus.io, where the project has been documented and extracted features of the copyrighted dataset can be freely downloaded and explored with customized Jupyter Notebooks and guided tutorials for topic modeling and visualization. Temple seeks to share this dataset with other libraries, and expand access for researchers, including through collaborations with the dozens of science fiction collecting libraries in North America, members of the Science Fiction Collecting Libraries Consortium. *Data Speculations* explores the risks and affordances of sharing and growing copyrighted datasets, to offer guidelines and models for librarians and scholars at universities across the U.S. to collaboratively build the research materials necessary for future generations of teachers and researchers.

At a time when multinational publishing houses and for-profit database vendors speculate on the landscape of digitized contemporary culture, charging libraries for licensed access to their collections of newspapers and magazines as data, *Data Speculations* seeks an alternative vision: a future where libraries and scholars can steward - and not just license - large collections of copyrighted cultural data. Commercial development and control of TDM portals severely limit scholarly access to sufficient data, including by siloing datasets between privatized databases, and monetizing researchers' usage of each vendor's patented TDM applications. Peter McCracken and Emma Raub find that "vendors and content providers pursue many different paths to maintain control over the data that are being mined" and optimize monetization, including contractual licensing terms that limit text mining access (2023).

Additionally, commercial publishers leverage systems of surveillance of usage patterns and data to monetize related data they capture through their platforms. As legal scholar Sarah Lamdan observes, in a call to "reclaim the digital world, including our data and information resources, for the public, building digital infrastructures that specifically serve and protect public interests," these "data cartels" are at odds with our understanding of information and texts as a public good (2023).

In keeping with the theme of Digital Humanities 2025 - "Building access and accessibility" – *Data Speculations* imagines the possibilities for expanding scholarly access to copyrighted texts and preventing collections as data from being subsumed by commercial interests and restrictive licensing. While project findings are likely to be most immediately relevant to US-based scholars working under copyright law, this presentation will emphasize models and examples of interest to an international audience

Arguments in this proposal draw significantly on previous writings by the authors, including a chapter (Wermer-Colan and Potvin, forthcoming) and the original IMLS grant proposal.

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